

		Moving Party shall give notice.
4	Doe vs. Unruly Agency LLC 2023-01345140	Motion for Judgment on the Pleadings Defendant Unruly Agency LLC's Motion for Judgment on the Pleadings Defendant Unruly Agency LLC's Motion for Judgment on the Pleadings is DENIED. (Code Civ. Proc. §438, subd. (c).) Requests for Judicial Notice Defendant Unruly Agency LLC's Request for Judicial Notice is GRANTED. The Court takes judicial notice of the up to date version of the JAMS rules applicable to the Parties' prior aborted attempt to arbitrate the claims alleged here. (Evid. Code §452, subd. (h); Emerald Aero, LLC v. Kaplan (2017) 9 Cal.App.5th 1125, 1133 fn. 5 [taking judicial notice of arbitration rules pursuant to Evid. Code §452, subd. (h).].) The Court takes judicial notice of the request for dismissal entered on 7/9/24 in the matter of Jane DOE v. Unruly Agency LLC (LASC Case No. 21STCV31028). (Evid. Code §452, subd. (d).) Plaintiff Jane DOE's Request for Judicial notice is GRANTED. The Court takes judicial notice of the Complaint filed on 8/23/21 in the matter of Jane DOE v. Unruly Agency LLC (LASC Case No. 21STCV31028), the register of actions in the LASC action, the Notice of Related Case filed on 6/26/24 in the LASC action, and the dismissal entered on 7/9/24 in the LASC action. (Evid. Code §452, subd. (d).) Plaintiff's Evidentiary Objections The Court rules on Plaintiff's evidentiary objections as follows: Objections 1-3: The matters objected to are not material to the Court's determination of

		the Motion, so the Court does not reach these objections. Objection 4: SUSTAINED. Defendant's assertion that "Ultimately, the arbitration did not take place" is a matter extrinsic from the allegations of the challenged pleading and is used as an attempt to establish the untimeliness of Plaintiff's claims alleged here. The Court will not consider matters beyond the four corners of the SAC or subject to judicial notice. Plaintiff's Objection to Hearing Date Plaintiff's objection to the September 18, 2026 hearing date is OVERRULED. While the Court denied an ex parte advancing the hearing date of a previously filed Motion for Judgment on the Pleadings, the hearing date on the instant motion was obtained through the court's reservation system, thereby allaying any concern the Court expressed regarding the advancement of the hearing date. Moreover, Plaintiff has not shown any prejudice that would result from hearing the motion on the noticed date, given that Plaintiff has had adequate notice of the hearing and has filed an opposition on the merits. The pendency of a discovery dispute is irrelevant to the outcome of a motion for judgment on the pleadings, as matters extraneous to the pleading are not properly considered in assessing a motion for judgment on the pleadings. Motion for Judgment on the Pleadings "A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.' [Citation.] As with a demurrer, '[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.' [Citations.]" (Eckler v. Neutrogena (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d); see Hopp v. City of Los Angeles (2010) 183 Cal.App.4th 713, 717 ["A motion for judgment on the pleadings is equivalent to a general demurrer, and the courts treat all
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		properly pleaded material facts in the complaint as true”]; see also <i>Stoops v. Abbassi</i> (2002) 100 Cal. App. 4th 644, 650) To prevail on a motion for judgment on the pleadings based on the statute of limitations the dates alleged in the complaint must plainly show that the action is barred by the statute of limitations – the facts alleged may not be “susceptible to opposing inferences.” (See <i>Saliter v. Pierce Brothers Mortuaries</i> (1978) 81 Cal.App.3d 292, 300.) The running of the statute must appear “clearly and affirmatively” from the dates alleged. It is not sufficient that the complaint might be barred. (<i>Marshall v. Gibson, Dunn & Crutcher</i> (1995) 37 Cal.App.4th 1397, 1403.) Here, Plaintiff has sufficiently pleaded that the claims are timely under a theory of equitable tolling. (See, e.g., SAC ¶¶6-12.) “[E]quitable tolling applies [w]hen an injured person has several legal remedies and, reasonably and in good faith, pursues one.” (<i>Saint Francis Memorial Hospital v. State Dept. of Public Health</i> (2020) 9 Cal.5th 710, 725 [internal quotations and citations omitted].) Equitable tolling requires a Plaintiff to demonstrate “timely notice, and lack of prejudice, to the defendant, and reasonable and good faith conduct on the part of the plaintiff.” (<i>Id.</i> at 724.) Pursuing arbitration has been recognized as a basis for equitable tolling. (See, e.g. <i>Rodriguez v. Southern California District Council of Laborers</i> (1984) 160 Cal.App.3d 956, 961.) Defendant’s argument that equitable tolling should not be applied because Plaintiff has not acted in good faith require determination of factual issues and consideration of matters beyond the pleadings and not subject to judicial notice. The Court is not going to make factual determinations in assessing a motion for judgment on the pleadings. Since there is an adequately pleaded basis for equitable tolling, the court need not reach the question of statutory tolling under Code Civ. Proc. §1281.98.
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6	Ghods vs. Hedayati 2026-01546241	Demurrer to Cross-Complaint Plaintiff and Cross-Defendant Mohamad R. Ghods's Demurrer to the Cross-Complaint is SUSTAINED. Lack of Standing "Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute." (Code Civ. Proc., § 367.) A litigant's standing to sue is a threshold issue to be determined by the court before addressing the merits. (See Boorstein v. CBS Interactive, Inc. (2013) 222 Cal.App.4th 456, 465.) The Cross-Complaint alleges that Ghods wrongfully withdrew management fees from MGPS, which is a limited liability company that owns and operates commercial real property. Ghods is the sole manager of MGPS pursuant to its Operating Agreement. (Cross-Complaint, ¶ 4.) Cross-Complainants do not allege they are members or managers of MGPS. Cross-Complainants allege that they have a right to bring the Cross-Complaint by virtue of the Family Trust being a holder of a 50% membership interest in M&G, which holds 99% of the membership interest in MGPS. Ghods withdrawals from MGPS harms their membership interest in M&G, which was a personal property belonging to the Family Trust. The issue of standing will be considered separately below. First Cause of Action – Breach of Fiduciary Duty A claim for breach of fiduciary duty must allege and prove three elements: (1) the